

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/08/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

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PLAINTIFF:     DIRK AGUILAR

vs.

DEFENDANT:   JUAN ANON ET AL.

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NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

**RULING**

This matter concerns Plaintiff's motion to compel Defendants Juan Anon, Nataliya Anon, and Maluk, LLC to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Production. A discovery facilitator was appointed, but on April 22, 2026, the parties requested another facilitator due to conflicts. On May 13, 2026, the Court continued the motion to compel to July 8, 2026. On May 26, 2026, Discovery Facilitator Laurel Halbany was appointed to assist the parties.

Pursuant to local rule MCR 2.13, the parties were ordered to file a Declaration of Non-Resolution if the matter did not resolve. No Facilitator report was received and neither party filed a Declaration of Non-Resolution. The Court, therefore, assumes that the matter has revolved. If the matter did not resolve after facilitation, either party may place the matter back on calendar by filing a Declaration of Non-Resolution per MCR 2.13H and by appearing ex parte to reschedule the hearing.

*All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.*

*The Zoom appearance information for July, 2026 is as follows:*

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

*If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>*

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PLAINTIFF:    WELLS FRARGO BANK,  
N.A.

vs.

DEFENDANT:   GARY SATTIN, AN  
INDIVIDUAL

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NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

**RULING**

The unopposed motion for summary judgment by plaintiff Wells Fargo (“Plaintiff”) is GRANTED. (Code Civ. Proc., § 437c, subds. (c) and (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

***Facts***

Plaintiff filed this action on December 2, 2025, against defendant Gary Sattin (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a credit card account and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Cardmember Agreement, including that use of the issued card constituted acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-3.) Defendant used the credit card, making charges and payments, and incurred a balance. (SS Nos. 6.) Plaintiff sent Defendant monthly statements for each billing period. (SS No. 7.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant or any active lawsuits for unresolved disputes on this account. (SS Nos. 9-10.)

The last payment applied to the account or transaction made by Defendant was on December 2, 2024. (SS No. 11.) Thereafter, no further payments were made by the Defendant and therefore, under the terms of the Cardmember Agreement, Defendant was in default. (SS No. 12.) Defendant owes Plaintiff \$20,076.88 on the principal balance, which remains unpaid. (SS No. 13.) Defendant has admitted these facts in response to Plaintiff’s Request for Admissions. (SS No. 15.)

***Standard for Summary Judgment***